EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

Information Note on the Court's case-law 225

January 2019

Cordella and Others v. Italy - 54414/13 and 54264/15

Judgment 24.1.2019 [Section I]

Article 8

Article 8-1

Respect for private life

Lack of reaction to air pollution by a steelworks, to the detriment of the surrounding population's health: *violation*

Article 46

Article 46-2

Execution of judgment

General measures

Respondent State required to take general measures in the face of continued air pollution from factory emissions, affecting the health of persons living in the neighbouring municipalities

Facts – The case concerned on-going air pollution by a steelworks, operating since 1965 in Taranto (a town with about 200,000 inhabitants) and owned by a former public company which was privatised in 1995. In 1990 a resolution of the Council of Ministers identified the town of Taranto and four other neighbouring municipalities as being at "high environmental risk" on account of the emissions from the steelworks. In 1998 the President of the Republic approved a decontamination plan. In 2000 a ministerial decree included the municipalities of Taranto and Statte in the "sites of national interest sites for decontamination" (SIN). The authorities concluded agreements with the company. In 2011 substantive and information-related conditions were imposed in the context of an administrative operating licence. Several legislative decrees aimed at preserving Taranto's steel-producing activity, adopted from 2012 onwards, extended the deadlines imposed. In 2015, as a result of its insolvency, the company was placed in compulsory administration, and the administrator was granted exemption from administrative and criminal liability in introducing the planned environmental measures. In the meantime, European Union institutions (the Court of Justice and the Commission) concluded that Italy had failed in its obligation to guarantee compliance with the applicable directives. Various civil or criminal proceedings were brought. Nonetheless, the toxic emissions persisted.

The applicants are several dozen physical persons who live or lived in the more or less immediate vicinity of the steelworks. They complained of a lack of action by the State to avert the effects of the factory's toxic emissions on their health.

Law

Article 8: While it was not the Court's task to determine exactly what measures should have been taken in the present case to reduce pollution in a more efficient way, it was certainly within the Court's jurisdiction to assess whether the national authorities had approached the problem with due diligence and given consideration to all the competing interests. The onus here was on the State to justify, using detailed and rigorous data, a situation in which certain individuals bore a heavy burden on behalf of the rest of the community.

Since the 1970s, however, scientific studies (the majority of which were issued by State and Regional entities) had shown the polluting effects of the emissions from the Ilva steelworks in Taranto on the environment and on public health. Those studies had confirmed the existence of a causal link between environmental exposure to certain inhalable substances emitted by the factory and the development of certain tumours or cardio-circulatory pathologies (2012 study) and increased mortality from natural causes, tumours, and kidney and cardiovascular disease (2016 study) among persons living in the affected areas. Research published in 2017 had shown the continuance of a critical health situation in the municipalities identified as being at high environmental risk (the town of Taranto had mortality and hospitalisation rates in respect of the relevant pathologies that were higher than the regional average).

The national authorities' attempts to achieve decontamination of the region in question had not so far produced the desired results. The measures recommended from 2012 onwards in the context of an administrative environmental decree (the "AIA") had not ultimately been taken (indeed, that failure had been at the origin of an infringement procedure before European Union institutions). Furthermore, implementation of the environmental plan approved in 2014 had been postponed to August 2023. Thus, pursuit of the identified decontamination targets was extremely slow.

In the meantime the Government had repeatedly intervened (through special legislative decrees) in order to guarantee that the steelworks would continue production, despite the findings by the relevant judicial authorities, based on chemical and epidemiological expert reports, that there existed serious risks to health and to the environment. In addition, administrative and criminal immunity had been granted to the persons responsible for ensuring compliance with environmental requirements (the compulsory administrator and the future buyer of the company). This situation was compounded by the uncertainty arising, on the one hand, from the company's state of financial failure and, on the other, from the option granted to the future buyer to postpone the clean-up operations inside the factory.

In consequence, it appeared that, in so far as it concerned the authorities' responsibility, management of the environmental questions raised by the Taranto steelworks remained deadlocked. Thus, there persisted a situation of environmental pollution endangering the health of the applicants and, more generally, that of the entire population living in the areas at risk, a population which remained, as things stood, without information as to progress in the clean-up operation for the territory concerned, particularly with regard to the timeframe for beginning the relevant work. In short, the national authorities had failed to take all the necessary measures to provide effective protection of the applicants' right to respect for their private life; the necessary fair balance had not been struck.

Conclusion: violation (unanimously).

Article 46: Having regard, *inter alia*, to the technical complexity of the necessary measures for decontamination of the area in question, which fell within the competence of the domestic authorities, it was not necessary to apply the "pilot-judgment" procedure. It was not for the Court to give the Government detailed and prescriptive

recommendations, such as those requested by the applicants: it would be for the Committee of Ministers to indicate to the respondent Government the measures to be adopted for the execution of the present judgment. Nevertheless, the fact remained that decontamination work to clean up the factory and the region affected by the environmental pollution was essential and urgent. The environmental plan approved by the national authorities, setting out the necessary measures and actions to secure environmental and health protection to the population, was therefore to be implemented as rapidly as possible.

The Court also held, unanimously, that there had been a violation of Article 13 taken in conjunction with Article 8 of the Convention.

Article 41: finding of a violation sufficed to compensate for the non-pecuniary damage.

(See also *Fadeyeva v. Russia*, 55723/00, 9 June 2005, Information Note 76; *Di Sarno and Others v. Italy*, 30765/08, 10 January 2012, Information Note 148; *Jugheli and Others v. Georgia*, 38342/05, 13 July 2017, Information Note 209; and the Factsheet on Environment)

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